

Correspondence from DRMS



Pete L'Orange, CP&P...



August 29, 2022

Boulder County
Community Planning & Permitting
PO Box 471
Boulder, CO 80306

Re: Lyons Quarry, Permit No. M-1977-208

To Whom It May Concern:

This letter is being written to address questions brought to the Division of Reclamation, Mining and Safety (Division/DRMS) by the Boulder County Attorney's Office. Below are the questions asked followed by the Division's response in bold text.

Questions Related to the Relationship Between the Dowe Flats Quarry and the CEMEX Cement Plant

1. If mining operations at the Dowe Flats Quarry (DRMS Permit M-1993-041) ceased, would the CEMEX cement plant (DRMS Permit M-1977-208) be required to shut down?

The Lyons Quarry DRMS permit (M-1977-208) would not need to be terminated if the mining operations at the Dowe Flats Mine (M-1993-041) ended.

2. If mining operations at the Dowe Flats Quarry (DRMS Permit M-1993-041) ceased, and CEMEX continued to operate the cement plant by sourcing materials from elsewhere by truck/rail, would CEMEX be required to amend the permit for the Lyons Quarry and the cement plant (DRMS Permit M-1977-208)?

The permit can be revised through submission of a Technical Revision or Amendment application, depending on what the Operator proposes. A proposed change in post-mining land use (e.g., from pasture to industrial/commercial - to leave the plant for final reclamation), a significant change to the reclamation plan, and/or any increase in affected land must be reviewed through the Amendment process which includes a public comment process.

A change in source material only for the plant without a change in the post mine land use, significant change in the reclamation plan, and/or an increase in affected land could be processed by DRMS as a Technical Revision which does not require a public comment process.

3. If CEMEX is required to amend the permit for the Lyons Quarry and the cement plant (DRMS Permit M-1977-208) because it is bringing raw materials to the site by truck/rail rather than from

the Dowe Flats Quarry, what will the permit amendment process look like? Will it be an administrative process without the opportunity for public comment? Will there be an opportunity for public comment? Please provide more detail on what this process might entail.

The review period for a 112c permit Amendment application is 90 days. However, the Operator can request extensions of the initial decision date, and it is not uncommon for the review period to take several months longer. Notice of an Amendment application is sent to various local, state, and sometimes federal agencies (this would include the county and any municipalities located within 2 miles of the site). Notice of the application is also sent to Owners of Record of the surface and subsurface and mineral rights of the affected land and the Owners of Record of all land surface within 200 feet of the boundary of the affected lands. Additionally, the Operator must place notice sign(s) at the mine site, place a copy of the application for public review with the County Clerk and Recorder's Office, and publish a notice in a newspaper in the locality of the mine site once a week for four consecutive weeks. The public comment period for a 112c Amendment application begins when the application is considered filed with DRMS, and ends 20 calendar days after the date of the last newspaper publication.

There is no public comment period for Technical Revisions and the Division is required to act on the Technical Revision within 30 days of filing.

Questions Related to the Relationship Between the Lyons Quarry and the CEMEX Cement Plant

4. Can you please describe the current status of the activity at the Lyons Quarry? Is the land being actively mined? Is the land currently being reclaimed?

Excavation has ceased at the Lyons Quarry and the cement plant continues to operate. Mining at the site included the excavation of six pits. Two pits have been reclaimed and released by DRMS. The other pits have either been reclaimed or are currently under reclamation.

5. When all mining/reclamation activity at the Lyons Quarry (DRMS Permit M-1977-208) is complete, will the CEMEX cement plant (DRMS Permit M-1977-208) be required to shut down, be dismantled, and the land reclaimed?

Operations at the cement plant may continue at the Lyons Quarry even though excavation is complete within the Lyons Quarry permit area. When operations at the cement plant terminate, the affected land where the cement plant is located must be reclaimed. The approved post-mining land use for the Lyons Quarry is pastureland. When no longer in operation, the current reclamation plan requires the Operator to shutdown, dismantle and reclaim the cement plant site to the approved post-mining land use.

6. If yes to Question #5, how long will CEMEX be permitted to operate the cement plant under DRMS Permit M-1977-208 after all mining/reclamation activities are complete?

The currently approved reclamation activities at the Lyons Quarry will not be considered complete until the cement plant site is reclaimed to the post mine land use of pastureland. Reclamation must be completed within five years from the date the Operator ceases operations at the site.

This concludes the Division's response to the Boulder County Attorney's Office.

Sincerely,

Jared Ebert
Senior Environmental Protection Specialist

cc: DRMS Permit File

